Policy & Standard Operating Procedure		DEVSINC your technology partner
Title: Leaves Policy	Issued By: HA	

Effective Date:	01-January-2024
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Process Owner:	Final Reviewed By:	Approved By:
Head of HA	**Devsinc BODs**	**CEO / MD** **Shariah Department**
Signature	**Signature**	**Signature** **Signature**

Revision History			
Rev. No.	Description	Rev. Date	Effective Date
V-3	Leaves Policy	April 29, 2024	January 01, 2024

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1.0 Purpose:

This policy is designed to ensure equitable management of team members absences while promoting work-life balance and compliance with legal requirements, fostering a productive and supportive workplace culture.

2.0 Scope:

The policy is applicable to all permanent employees who are working as Full Time and Partial. This policy is not applicable on employees hired in the capacity of Consultants or Contractors.

3.0 Leaves Types:

3.1 Casual Leaves:

- Full-time team members are entitled to utilize up to **10 casual leaves** (working days) per calendar year, spanning from January to December.
- These leaves are allocated on a prorated basis and accumulate accordingly throughout the year.
- Casual leaves are intended for urgent, unforeseen situations, such as medical emergencies, family crises, household issues, vehicle breakdowns, legal obligations, personal crises, or attending funeral or memorial services. These leaves are meant to provide flexibility for handling unexpected events that may arise throughout the year.
- Casual leave can only be availed "01" in one occurence. If more than one leave is needed, team members must apply for annual leaves.
- During the probation period, team members can avail a maximum of 02 casual leaves.
- Unavailed casual leaves shall lapse automatically at the end of each calendar year and are not en-cashed or carry forward in any circumstances.

How to apply casual leaves?

- To request casual leave(s), use the Maple HR system and select the "Casual Leaves" category.
- Provide a brief reason in the description.
- Your team lead or HOD will first approve the leave.
- Once approved by them, the HA team will review the leave request to ensure compliance with the valid reasons outlined in the policy. Requests not meeting the criteria will be declined.
- Apply for casual leaves at least 1 or 2 days in advance and inform your Team Lead. In emergencies, inform before the start of the working day.

3.2 Sick Leaves:

- All full-time team members can avail a maximum of **08 sick leaves** (working days)per calendar year, spanning from January to December.
- During the probation period, team members can avail a maximum of 02 sick leaves.
- Minimum of 01 sick leave can be applied during one occurrence.
- Medical proof (e.g. medical certificates) will be required for more than 01 sick leave.
- You may utilize a maximum of 8 sick leaves. If you exhaust your sick leave quota and require additional sick leave, it can be deducted from the cumulative quota. In the absence of a cumulative quota, you may adjust these leaves against your annual or casual leave entitlement. Such adjustments will be considered in genuine scenarios and are subject to approval by the team lead/HOD.

3.2.1 Special Sick Leaves

- If a team member experiences severe illness or sustains injuries in an accident and their available sick leave quota is not sufficient to cater the need, they may request special sick leave, which can be either partially paid or unpaid. The team lead/HOD will discuss the case with the CFO/MD/CDO and approve the leave accordingly. The allocation of special sick leave is not predefined and will vary based on individual cases.

3.2.2 Sick Leaves Carry Forward:

- If sick leaves are not utilized by any team member during a calendar year, remaining sick leaves can be carried forward. However, the total accumulation of such leave shall not exceed 16 working days at any given time, exceeding leaves will automatically lapse by end of the year.

How to apply sick leaves?

- To request sick leave(s), use the Maple HR system and select the "Sick Leaves" category.
- Provide a brief reason in the description.
- Your team lead or HOD will first approve the leave.
- Once approved by them, the HA team will review the leave request to ensure compliance with the valid reasons outlined in the policy. Requests not meeting the criteria will be declined.
- If a team member is unable to work on a particular day(s) due to illness, he/she is required to inform his/her team lead/project manager before the start of the working day through any means of communication. It will facilitate a team in soothly managing the committed work.
- It's mandatory that your practitioner has recommended you "Bed Rest" on your prescription/medical certificate if you are taking a sick leave for more than 2 days. The HA team will verify your medical certificate/prescription document and in case if the doctor has not recommended you “Bed Rest” on your certificate, your sick leave will not be approved.

3.3 Annual Leaves:

- All full-time team members can avail a maximum of **14 annual leaves** (working days) per calendar year, spanning from January to December.
- To ensure clarity, annual leaves will become effective from the date of joining rather than from the date of confirmation or after completing one year of employment.
- These leaves are allocated on a prorated basis and accumulate accordingly throughout the year.
- During the probation period, team members can avail a maximum of 02 annual leaves.
- Annual leaves may be utilized for various circumstances, such as vacations, participation in Hajj or Umrah, personal weddings, family member weddings, family crises, and similar situations.
- A team member should maximum apply for 2 weeks leave in 1 occurrence unless there is a special occasion e.g. Hajj, Umrah, family plans etc. All the leave shall be granted subject to the approval of team lead/HOD.

3.3.1 Annual Leaves Carry Forward:

- Unused annual leave quota can be carried forward to the next year.

3.3.2 Annual Leaves Encashment:

- If by the end of the year, a team member has more than 28 annual leave days in his/her annual leaves quota, the count of leaves above 28 days will be encashed by the end of the calendar year.

3.3.3 Annual leaves encashment in case employees leaves the company

- If a team member departs from the company before completing a year of employment, the company will not be responsible for encashing any accrued annual leave.
- However, if a team member leaves the company after completing a year of employment, only their unused annual leave quota carried forward from the previous year will be encashed. Leaves accrued in the current year will not be encashed or adjusted.

Scenarios:

Let's break down the scenarios for clarity of annual leaves accumulation, carried forward and encashment:

Scenario 1:

During 2024, Siddra used 4 of her annual leaves, leaving her with 10 unused leaves by the end of the year. These 10 leaves will be carried forward to her annual leave balance for the next year, 2025.

Scenario 2:

In 2025, Siddra accrues her annual leaves throughout the year but does not utilize any. This brings her total leave quota to 24 (10 from the previous year + 14 earned during the year). All 24 unused annual leaves will be carried forward to the following year, 2026.

Scenario 3:

In 2026, Siddra continues to earn her annual leaves as usual. She uses 5 of her annual leaves during the year, resulting in a remaining leave quota of 32 (9 from the previous year + 24 earned during the year). The company will encash 4 of Siddra's annual leaves, and the remaining 28 leaves will be carried forward to the next year, 2027.

These scenarios illustrate how Siddra's annual leave balance is managed over consecutive years, ensuring clarity on the accumulation, utilization, carry-forward and encashment of annual leave entitlements.

Scenario 4:

If after a year (or more) of employment, Siddra decides to leave the company, the company will encash her unused annual leave quota carried forward from the previous year. Leaves accrued in the current year will not be encashed at the time of her departure in the final settlement.

How to apply Annual Leaves?

- To request annual leave(s), use the Maple HR system and select the "Annual Leaves" category.
- Provide a brief reason in the description.
- Your team lead or HOD will first approve the leaves.
- Once approved by them, the HA team will review the leave request to ensure compliance with the valid reasons outlined in the policy. Requests not meeting the criteria will be declined.
- Team members should apply for annual leaves at least 1 week ago.
- Annual leave requests may be deferred /not entertained if the business requires the presence of the team member during the requested period of leaves.

The HA team will encourage all team leads/HODs to obtain the tentative annual leave schedule at the beginning of each year. This practice aids in more effective capacity planning for the team. Once a team member's annual leave plan is confirmed, they can submit their leave request via Maple to obtain formal approval from their team lead/HOD.

3.4 Maternity Leaves

- Female team members are entitled to a maternity leave period of up to 90 calendar days (equivalent to 3 months).
- All these leaves will be paid.
- No sandwich rule will be applicable on these leaves.
- These paid maternity leave shall not have any impact on the annual review of the team member.
- Team member's can avail maternity leave only twice in the tenure.

3.5 Paternity Leaves

- Male team members are entitled to a paternity leave period of up to 5 working days upon the birth of the child.
- Paternity leaves can be availed twice only during the complete employment period.
- All these leaves will be paid.
- No sandwich rule will be applicable on these leaves.

How to apply Maternity/Paternity Leaves?

- Team members must apply for maternity/paternity leave at least a week before on Maple and inform their immediate Team Lead/HOD prior to commencing leave, specifying the start date and, if known, the anticipated return date.

3.6 Leaves Without Pay

This aims to offer team members the option of taking unpaid leave in exceptional circumstances.

- Team members should inform his/her schedule of long unpaid leaves at least a month before the actual leave dates.
- If a team member avails more than or equal to 10 unpaid leaves in a month then all the perks & benefits will be paid on a pro-rata (daily basis) basis.
- Up to 10 unpaid leaves will not impact the biannual/biannual review process. However, if the number of unpaid leaves exceeds 10, the duration will not be included in the review cycle. For instance, if 20 unpaid leaves are taken, the review period will extend to 20 working days instead of the usual 10 working days.
- A team member can avail a maximum of two (2) months unpaid leave with the prior approval of team lead/HOD
- Please note, the sandwich rule will be applicable on unpaid leaves.
- If a team member intends to take leaves without pay for a duration exceeding 2 months, the matter will be deliberated with the CDO/CFO/MD and can only be entertained upon obtaining approval from the relevant authority
- Leave without pay period will not be considered as part of total service period within the company if the leave period exceeds 3 months.
- If a team member does not report back on his/her actual re-joining date (after unpaid leaves), his/her services will be considered as "Terminated". In case, if an employee wants to extend his/her unpaid leave(s), he/she should discuss it with the team lead/HOD by keeping HA in at-least fifteen (15) days before the re-joining date.
- The company retains the authority to delegate the responsibilities of team members to others during their periods of absence.
- Company reserves the right to change the Job role, grade, compensation, location or department at the time of rejoining.

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Leaves Summary:

Leave Type	Leaves Quota	Reasons	Update in Policy
Casual Leaves	10 working days	For urgent, unforeseen situations, such as medical emergencies, family crises, household issues, vehicle breakdowns, legal obligations, personal crises, or attending funeral or memorial services.	New leave category
Annual Leaves	14 working days	For various circumstances, such as vacations, participation in Hajj or Umrah, personal weddings, family member weddings, family crises, and similar situations.	Previous policy will remain intact
Leaves Carry Forward	All unused leaves shall be carried forward to next year.	To save them up for an occasion where annual leave can be used.	New Category
Leaves Encashment	Leaves count exceeding 28 working days	All unused leaves are not accumulated, and a specific quota must be paid.	A few terms have been updated
Sick Leaves	8 working days	To cater illness	Quota has been changed
Special Sick Leaves	No defined quota	Severe illness or sustains injuries in an accident	A few terms have been updated
Sick Leaves Carry Forward	16 Above Leaves	Severe illness or sustains injuries in an accident	All the 16 above sick leaves
Maternity Leaves	90 calendar days	During pregnancy and after birth of her child	Previous policy will remain intact
Paternity Leaves	5 working days	Upon birth of his child	Previous policy will remain intact
Leaves without Pay	10 working days-upto 3 months	To cater special circumstances	A few terms have been updated
Annual trip leave	1 working day	Only applicable in the case of an official annual trip.	Previous policy will remain intact